

DISCORD'S TERMS OF SERVICE

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Welcome! Discord enables you to build meaningful connections around the joy of playing games through voice, video and text features. We're happy you're here.

These terms set forth our legal obligations to each other. They apply to your use of our services.

IMPORTANT NOTE: The section titled "[Settling Disputes Between You and Discord](#)" contains an arbitration clause and class-action waiver that applies to all U.S. or Canada-based Discord users. Please read this section carefully as it may significantly affect your legal rights, including your right to file a lawsuit in court.

When we say "Discord," "we," "us," and "our" in these terms, we mean Discord Inc., its subsidiaries, and its related companies.

When we say "services" in these terms, we mean Discord's services, apps, websites, and other products.

When we say "you" or "your," we mean you. If you're accessing our services on behalf of a legal entity (like your employer), you agree that you have the authority to bind that entity to these terms, and "you" and "your" will refer to that entity.

We also have a [Privacy Policy](#), [Community Guidelines](#), and other policies (as [listed here](#) or as otherwise made available to you) that apply to your use of our services and are incorporated into these terms. You should read these policies—we've worked hard to make them simple and clear, and they contain important information about your use of our services. If you use our APIs, SDKs, or other developer services or software, Discord's [Developer Terms of Service](#) and [Developer Policy](#) apply to that use. Discord's [Paid Services Terms](#) apply to any purchase you make through Discord, and Discord's [Monetization Terms](#) apply to any sales you make through Discord. By using Discord's services, you agree to these terms.

Together, these rules make Discord possible, and they matter to us. If you believe others aren't following them, please let us know [by reporting it to us](#).

WHO WE ARE

We're Discord! Discord Inc. is located at 444 De Haro Street #200, San Francisco, CA 94107, USA. Discord Netherlands B.V. is located at Schiphol Boulevard 195, 1118 BG Schiphol, Netherlands

AGE REQUIREMENTS AND RESPONSIBILITY OF PARENTS AND LEGAL GUARDIANS

By accessing our services, you confirm that you're at least 13 years old and meet the minimum age required by the laws in your country. Our services are not designed for nor directed towards users under the age of 13. We may take additional steps, including the use of third-party services, to determine whether you are old enough to create a Discord account or access certain features or spaces. By creating a Discord account or using our services, you accept and agree to be bound by these terms and represent that you have either reached the age of "majority" where you live or your parent or legal guardian agrees to be bound by these terms on your behalf. If you do not know whether you have reached the age of majority where you live, or do not understand this section, please ask your parent or legal guardian for help and ask them to read these terms with you. We maintain a [list of minimum ages](#) around the world as a resource for you, but we aren't able to guarantee that it is always accurate. If you're a parent or legal guardian, and you allow your child (who must meet the minimum age for your country) to use the services, then you and the minor child accept and agree to be bound by these terms and are responsible for all use of the Discord account or services, including your child's activity on the services and purchases made by them, whether the minor's account is now open or created later.

WHAT YOU CAN EXPECT FROM US

Discord provides services that help you connect with other Discord users and communities. Discord users communicate primarily via “servers,” which are digital spaces made up of different types of channels. Text channels allow users to interact via text-based messages, as well as images, GIFs, emoji, and other uploadable media. Voice channels allow users to communicate by voice and/or streaming video. Users can also communicate one-to-one using direct messages, or communicate with a limited number of users via group direct messages. We’re always evolving our services, and we may create other types of spaces in the future!

Users create servers, and users choose which servers to join and who their “friends” are. All users must follow our [Community Guidelines](#) and other policies, but in servers, the server owners and admins control the server permissions and additional rules, including establishing membership requirements and creating custom roles and what those roles can do within the server. Server owners and admins also control whether to make their server available in Server Discovery, whether to publish their server invite link on public websites, whether to enable community growth and safety features, and whether to add bots or other apps. These permissions, like the size of a server, may change over time.

Discord is designed to make communicating with the people you want to speak to as easy as possible. Posts appear in text channels in the order in which they’re made. Voice and video communication happens in real time. We may build features that help you create content, communicate with others, discover or access content or third-party services, or join conversations more easily, or may highlight content and activity available to you on Discord that might be of interest. This may include the ability for you, or other users, to connect a Discord account and communicate on and off Discord through third-party services (like [in-game features](#)). Our services may also include certain features and content that are provided or sponsored by others or that you can purchase from us or others (additional [terms](#) may apply). Learn more below about the [content](#) and [software](#) that may be in our services.

Discord is designed to integrate with your device to make it easy to share what you’re up to. When Discord is running, we may identify active games and other applications on your device to allow you to quickly call a friend while in a game, stream what you’re doing on your device, share your status (including what game you’re playing or what song you’re listening to if you link a music account), and more. Sharing gameplay and other activity

status is fundamental to the Discord experience. You can change your Settings at any time, and you're in control of whether or not you connect other accounts to Discord.

Discord's services may be personalized to each user based on a variety of factors, including their activity, preferences they identified in their Settings, and servers they belong to, so that you can see content and communities that may be of interest to you (such as features or activity on Discord, promotions from us, and sponsored content). You can control whether and to what extent Discord personalizes your experience in your Settings.

Discord also takes user safety seriously. We provide features and services that are designed to help keep users safe. Certain features and settings may have different defaults depending on your age or where you live, and some may not be optional at all. We also provide tools and resources like [Family Center](#) and our [Guardian's Guide](#) to help parents and guardians better understand how Discord works, how their teens may use Discord, and how they can develop collaborative approaches to build positive online behaviors. We also provide features to help make Discord more accessible [as described here](#).

We're actively developing new features and products to improve Discord. As part of these efforts, we may add or remove features, start offering new services, or stop offering some services entirely (or just in some places or for some users) if they no longer make sense from a business perspective or create risk for Discord, our users, or other third parties. While we try to avoid disruptions, we cannot guarantee that there will not be an outage or change to the services, and your content may not be retrievable due to such outages or changes. We are not liable for any such outages or service changes.

YOUR DISCORD ACCOUNT

To access the services on an ongoing basis, you will need to create a Discord account. You can provide a username and password, and a way of contacting you (such as an email address and/or phone number). You'll also need to provide your birthday. In some cases, you may be required to verify your account or provide additional information.

You are responsible for the security of your account, and you agree to [notify us](#) immediately if you believe your account has been compromised. If you use a password, it must be

strong, and we (strongly) recommend that you use that password only for your Discord account and that you enable two-factor authentication.

You must always provide accurate information to Discord and maintain the accuracy of the information associated with your account. We may assume that any communications we've received from your account or the associated contact information have been made by you, and that any purchases made using your account were made by you.

If you get locked out of your account, we'll need to contact you at the email or phone number associated with your account. If your account is compromised or you no longer have access to your email account or phone number, we may not be able to restore your access to your account or the servers you've created.

You agree not to license, sell, lend, or transfer your account, Discord username, vanity URL, or other unique identifier without our prior written approval. We also reserve the right to delete, change, or reclaim your username, URL, or other identifier.

CONTENT IN DISCORD'S SERVICES

Your content

When we say "your content" in these terms, we mean all the things you add (upload, post, share, stream, etc.) to our services. This includes text, links, GIFs, emoji, photos, videos, documents, or other media. If we come up with another way for you to add content to the services, it includes that too.

You don't have any obligation to add content to the services. If you choose to add content to the services, you are responsible for ensuring that you have the right to do so, that you have the right to grant the licenses in this section of these terms, and that your content is lawful. We take no responsibility for any of your content, and we are not responsible for others' use of your content.

Our services allow users to add content in a number of different ways, including via direct messages, group direct messages, and in small and large servers. Some of these servers may be larger spaces, and if you share content within them, that content may be more

likely to be accessed by a lot of people. For example, some servers are available in the Server Discovery section of the app and do not require an invite link to join. Other server owners may publish their server invite link on public websites. Anyone can access these spaces. You should be aware that these permissions are set by server owners or admins, and they may change over time. Please understand where you are posting on Discord, familiarize yourself with the relevant server permissions when joining and posting in a certain space, and choose the right space, features, and settings for you and your content.

Your content is yours, but you give us a license (which is a form of permission) to it when you use Discord. Your content may be protected by certain intellectual property rights. We don't own those. But by using our services, you grant us a license to use, reproduce, distribute, create derivative works of, display, and perform your content. The rights you grant in this license are for the limited purpose of providing, developing, and improving our services as permitted by applicable laws. This license is worldwide, non-exclusive (which means you can still license your content to others), royalty-free (which means there are no fees for this license), sublicensable, and transferable. Learn more about how we use your content in our [Privacy Policy](#).

We reserve the right to block, remove, and/or permanently delete your content if we determine it is in breach of these terms, our [Community Guidelines](#), our other policies, or any applicable law or regulation, or if it creates risk for Discord or negatively impacts the experience or interests of other Discord users to continue to make it available. You agree that we may disclose your content to third parties outside of the services when we believe we're required to do so by law or regulation or that doing so is necessary to prevent harm to a person or to protect Discord's rights and property.

We [welcome feedback](#) on our services. By sending us feedback, you grant us a non-exclusive, perpetual, irrevocable, transferable license to use the feedback and ideas generated from the feedback without any restrictions, attribution, or compensation to you.

Discord's content

Our services include some content that belongs to us, such as the design of our apps and websites, our art and images, and content written by us. You may use our software as outlined in these terms. You may only use our trademarks (or other brand indicia) and

copyrights as permitted in our [Brand Guidelines](#) or with our prior written permission. We retain all intellectual property rights in our content.

Other content

Other people's content. Our services might also provide you with access to other people's content. You may not use this content without that person's consent, or as allowed by law. Other people's content is theirs and doesn't necessarily reflect Discord's own views. Discord doesn't endorse or verify the accuracy or reliability of content shared by Discord users. We work hard to try to make Discord a safe, positive, and inclusive place, but cannot always prevent you from encountering content that you may find objectionable or offensive. You agree we will not be liable for any harm caused by that content. You may [report content](#) that you think violates any of our policies. We have the right, but not the obligation, to review such reports and block or remove content at our discretion.

Third-party features and content. Our services may also contain links to or allow you to access third-party websites, features, apps, or other content. This may include sponsored content (like Quests or other sponsored formats). We are not responsible for the content or services available from these third parties.

SOFTWARE IN DISCORD'S SERVICES

License to our software. Some of our services allow you to download client software. So long as you comply with these terms, we grant you a worldwide, non-exclusive, personal, non-transferable, non-sublicensable, and non-assignable license to download, install, and run that software, solely to access our services.

You may not copy, modify, create derivative works based upon, distribute, sell, lease, or sublicense any of our software or services. You also may not reverse engineer or decompile our software or services, attempt to do so, or assist anyone in doing so, unless you have our written consent or applicable law permits it.

Although we are granting you this license, we retain any intellectual property rights we have in our software and services.

Open source. Some of Discord’s services [include software](#) subject to separate [open source license terms](#), and your use of those services are subject to your compliance with those license terms, when applicable. We encourage you to review them, as some licenses may explicitly override these terms.

Third-party services. Discord may allow you to access apps, bots, or other products, features, or services developed by third parties (“third-party services”). For example, third parties can build apps for content moderation or interactive games that server administrators can add to their servers on Discord, or that incorporate certain Discord-powered features or functions (such as messaging capabilities) into their services (such as games played off Discord). It’s your choice whether to use these third-party services and whether to participate in Discord servers or other spaces that incorporate them. You should review any terms and policies provided by the third parties before doing so as they govern your use of their services. While these third parties do need to follow all policies that apply to them (which may include these Terms, our [Community Guidelines](#), [Developer Terms of Service](#), and [Developer Policy](#)), Discord is not responsible for any third-party services. The third parties control the operation, functionality, and availability of their services, including whether to make them available in our discovery surfaces. Discord does not warrant or endorse, and will not have any liability for, any third-party services. You may report third-party apps (including bots and Activities) that you think violate any of our applicable policies through this [form](#) or reporting options we make available via our services. We have the right, but not the obligation, to review such reports and take enforcement actions at our discretion.

COPYRIGHT

We respect the intellectual property of others and expect our users to do the same. See our [Copyright & IP Policy](#) for information on how to file a copyright complaint.

DISCORD'S PAID SERVICES

We won't charge you a fee to use the basic functionality of our services, but you may be able to pay for additional features and products. Discord's [Paid Services Terms](#) also apply to any purchase you make using Discord's supported purchase flows, and you may also be asked to agree to separate terms such as our [Monetization Terms](#) before purchasing or selling new offerings through Discord.

RESTRICTIONS ON YOUR USE OF DISCORD'S SERVICES

When using our services, you must comply with these terms and all applicable laws, rules, and regulations, and you must only use the services for authorized and acceptable purposes. You must also adhere to our [Community Guidelines](#) and other policies, which contain more detailed rules about your content and behavior when using Discord and how we enforce them on Discord.

Fundamentally, do not do, try to do, or encourage or help others to do any of the following:

- **Don't use the services to do harm to yourself or others.** Among other things, this includes trying to gain access to another user's account or any non-public portions of the services; infringing anyone else's intellectual property rights or any other proprietary rights; exploiting, harassing, bullying, spamming, auto-messaging, or auto-dialing people through our services; and using our services to plan or cause real-world harm to someone else.
- **Don't use the services to do harm to Discord.** Among other things, this includes trying to gain access to, intentionally overburdening, or attacking our systems; scraping our services without our written consent, including by using any robot, spider, crawler, scraper, or other automatic device, process, or software; selling, licensing, or otherwise commercializing content or data obtained from our services; transmitting viruses or other malicious code to our services; using any unauthorized software designed to modify the services; abusing or defrauding us or our payment systems; copying,

dismantling, or reverse engineering any of our services or using our intellectual property without permission; and misusing our reporting or customer service mechanisms.

- **Don't use the services to do anything else that's illegal.** This includes using the services to plan or commit any crime or do anything else that is illegal.

We encourage you to [report content](#) or conduct that you believe violates these restrictions. You can learn more about our approach to safety and content moderation in our [Safety Center](#). **If you or someone else is in immediate danger, please contact your local law enforcement agency. Please note that you cannot contact law enforcement or other emergency services via our services.**

TERM & TERMINATION

Your right to terminate. You're free to stop using Discord's services at any time and for any reason. To terminate this agreement, you may delete your Discord account through the Settings page in the Discord app (the gear icon next to your username) and discontinue use of the services. Certain provisions of these terms will survive termination as outlined below in the "Survival" section.

Disabling your account limits the processing of your personal information as described in our [Privacy Policy](#). Disabling your account does not terminate this agreement.

Our right to terminate. Subject to applicable law, we reserve the right to suspend or terminate your account and/or your access to some or all of our services with or without notice, at our discretion for any reason, or for the following reasons:

- You breach, or you encourage or help others to breach, these terms (including, our [Community Guidelines](#), our other policies, or additional terms that apply to specific services).
- We're required to do so to comply with a legal requirement or court order.
- We reasonably believe termination is necessary to prevent harm to you, us, other users, or third parties.

- Your account has been inactive for more than two years.
- Continuing to allow your account to be active, giving you access to some or all services, or hosting your content creates risk for Discord, other users, or third parties.

However, we will give you advance notice if reasonable to do so or required by applicable law.

APPEALS

We value transparency and work hard to give you context for the decisions we make. You can appeal any enforcement action we take under these terms or other policies, including terminations, suspensions, or content removals through this [form](#) or available [in-app options](#). If you reside in the European Union, your appeal must be submitted within six months of the day the relevant decision has been notified to you.

INDEMNITY

You will indemnify and hold Discord and its officers, directors, employees and agents harmless from and against any claims, liabilities, damages, and costs (including reasonable legal and accounting fees) related to (a) your access to or use of our services or third-party services, (b) your content, (c) your violation of these terms, or (d) your negligence or willful misconduct.

SERVICES "AS IS"

We work hard to offer great services, but we can't guarantee any minimum levels of quality of services (which may also depend on factors beyond our control, such as the quality of your internet access and equipment). TO THE FULLEST EXTENT PERMITTED BY LAW, DISCORD, ITS AFFILIATES, AND THEIR RESPECTIVE SUPPLIERS MAKE NO WARRANTIES,

EITHER EXPRESS OR IMPLIED, ABOUT THE SERVICES. THE SERVICES ARE PROVIDED “AS IS.” WE ALSO DISCLAIM ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, QUIET ENJOYMENT, AND NON-INFRINGEMENT, AND ANY WARRANTIES ARISING OUT OF COURSE OF DEALING OR USAGE OF TRADE. THE LAWS OF CERTAIN JURISDICTIONS OR STATES DO NOT ALLOW LIMITATIONS ON IMPLIED WARRANTIES. TO THE EXTENT SUCH WARRANTIES CANNOT BE DISCLAIMED UNDER THE LAWS OF YOUR JURISDICTION, WE LIMIT THE DURATION AND REMEDIES OF SUCH WARRANTIES TO THE FULL EXTENT PERMISSIBLE UNDER THOSE LAWS.

DATA CHARGES

You are responsible for any mobile charges that you may incur for using our services. This includes data charges and charges for messaging, such as SMS, MMS, or other messaging protocols or technologies. If you are not sure what you may be charged, you should ask your mobile service provider before using our services.

LIMITATION OF LIABILITY

WE DON'T EXCLUDE OR LIMIT OUR LIABILITY TO YOU WHERE IT WOULD BE ILLEGAL TO DO SO. IN JURISDICTIONS WHERE THE BELOW TYPES OF EXCLUSIONS AREN'T ALLOWED, WE'RE RESPONSIBLE TO YOU ONLY FOR LOSSES AND DAMAGES THAT ARE A REASONABLY FORESEEABLE RESULT OF OUR FAILURE TO USE REASONABLE CARE AND SKILL OR OUR MATERIAL BREACH OF OUR CONTRACT WITH YOU. THIS PARAGRAPH DOESN'T AFFECT CONSUMER RIGHTS THAT CAN'T BE WAIVED OR LIMITED BY ANY CONTRACT OR AGREEMENT.

THE INFORMATION PRESENTED ON OR THROUGH THE SERVICES IS MADE AVAILABLE SOLELY FOR INFORMATIONAL PURPOSES. WE DO NOT CONFIRM THE ACCURACY, COMPLETENESS, OR USEFULNESS OF THE INFORMATION. ANY RELIANCE YOU PLACE ON SUCH INFORMATION IS SOLELY AT YOUR OWN RISK.

IN JURISDICTIONS WHERE EXCLUSIONS OR LIMITATIONS OF LIABILITY ARE ALLOWED, NEITHER DISCORD, ITS AFFILIATES, NOR OUR SUPPLIERS INVOLVED IN CREATING, PRODUCING, OR DELIVERING THE SERVICES WILL BE LIABLE, TO THE MAXIMUM EXTENT PERMITTED UNDER APPLICABLE LAW, FOR ANY INCIDENTAL, SPECIAL, EXEMPLARY, OR CONSEQUENTIAL DAMAGES, OR DAMAGES FOR LOST PROFITS, LOST REVENUES, LOST SAVINGS, LOST BUSINESS OPPORTUNITY, LOSS OF DATA OR GOODWILL, SERVICE INTERRUPTION, COMPUTER DAMAGE OR SYSTEM FAILURE, OR THE COST OF SUBSTITUTE SERVICES OF ANY KIND ARISING OUT OF OR IN CONNECTION WITH THESE TERMS OR FROM THE USE OF OR INABILITY TO USE THE SERVICES, WHETHER BASED ON WARRANTY, CONTRACT, STATUTE, TORT (INCLUDING NEGLIGENCE), PRODUCT LIABILITY, OR ANY OTHER LEGAL THEORY, AND WHETHER OR NOT DISCORD OR ITS SUPPLIERS HAVE BEEN INFORMED OF THE POSSIBILITY OF SUCH DAMAGE, EVEN IF A LIMITED REMEDY PROVIDED IN THESE TERMS IS FOUND TO HAVE FAILED OF ITS ESSENTIAL PURPOSE.

BESIDES THE TYPES OF LIABILITY WE CANNOT LIMIT BY LAW (AS DESCRIBED IN THIS SECTION), DISCORD LIMITS OUR LIABILITY TO YOU TO THE GREATER OF (A) THE AMOUNTS YOU HAVE PAID US IN THE THREE MONTHS BEFORE YOU FIRST ASSERT A CLAIM OR (B) \$100 USD (OR THE EQUIVALENT IN YOUR LOCAL CURRENCY).

DISCORD ISN'T LIABLE FOR THE CONDUCT OR CONTENT, WHETHER ONLINE OR OFFLINE, OF ANY USER OF OUR SERVICES.

THE EXCLUSIONS AND LIMITATIONS OF DAMAGES SET FORTH ABOVE ARE FUNDAMENTAL ELEMENTS OF THE BASIS OF THE BARGAIN BETWEEN DISCORD AND YOU. THE LIMITATION OF LIABILITY DESCRIBED ABOVE SHALL APPLY FULLY TO RESIDENTS OF NEW JERSEY.

SETTLING DISPUTES BETWEEN YOU AND DISCORD

PLEASE READ THIS SECTION CAREFULLY. IT AFFECTS YOUR LEGAL RIGHTS, INCLUDING YOUR RIGHT TO FILE OR PARTICIPATE IN A LAWSUIT IN COURT AND LIMITING YOUR

RIGHTS TO RESOLVE YOUR DISPUTE AS PART OF A CLASS OR REPRESENTATIVE ACTION.

This section applies to any and all disputes between you and Discord. “Disputes” means all disagreements between us including but not limited to claims arising out of or relating to any aspect of the relationship between us, these terms, or your use of the services, whether based in contract, tort, statute, fraud, misrepresentation or any other legal theory (each a “Dispute” and collectively “Disputes”).

“Informal Dispute Resolution.” Most Disputes can be resolved informally. If you have an issue with the services or Discord, you agree that you will reach out to us and use good faith efforts to settle the Dispute informally through negotiation before initiating a lawsuit or arbitration. This requires emailing disputes@discordapp.com a written notice (“Written Notice”) about your issue, which must include: ① your name; ② the email address or phone number associated with your Discord account; ③ a detailed description of the issue; and ④ how you’d like to resolve it. This notice must be provided on an individual basis and you, along with your counsel if you have one, must be available personally for a telephone or videoconference to resolve your claims, unless Discord states in writing that you are not personally required to attend.

If the Dispute is not resolved within 60 days after receipt of the Written Notice, you and Discord agree to resolve any remaining Dispute through further informal discussions or one of the formal dispute resolution provisions below.

This Informal Dispute Resolution process, including your personal participation in the meet and confer is a prerequisite and condition precedent to commencing any formal dispute resolution proceeding. You and Discord (the “Parties”) agree that any applicable statute of limitations period and filing fees or other deadlines will be tolled while the Parties engage in this Informal Dispute Resolution process. The Parties further agree that whether a complaining Party has satisfied the requirements of this Informal Dispute Resolution process, including whether a Written Notice was properly submitted or contained all required information, is an issue that can be decided by a court as a prerequisite to arbitration.

If you reside in the European Union, you may also be entitled to submit your complaint to the Out-of-Court Dispute Settlement (“OCDS”) mechanism under DSA Article 21. Note that a submission via the OCDS mechanism alone, without submitting a Written Notice to

disputes@discordapp.com, will not toll the applicable statutes of limitations or other deadlines.

Governing Law, Jurisdiction, Class Action Waiver and Time Limitation.

EXCEPT WHERE PROHIBITED BY APPLICABLE LAW:

Choice of Law. These terms and all Disputes between you and Discord, whether in arbitration or court (if a Dispute is non-arbitrable under these terms for any other reason), shall be governed by the law of the United States and the laws of California, without regard to conflicts of law provisions—in other words, any federal law or California law, including any conflict of law principle, that would provide for the application of the laws of another jurisdiction other than the United States or California shall not apply.

Venue and Jurisdiction. By agreeing to these terms, you and Discord agree that to the extent any Dispute is not arbitrable—including any arbitration-related litigation, such as a motion to compel arbitration, to stay proceedings pending arbitration, or to confirm, modify, vacate, or enter judgment on an arbitration award—the Dispute must be resolved exclusively by a court of competent jurisdiction, federal or state (including small claims court), located in the County of New Castle, Delaware, and no other court. You and Discord consent to the exercise of personal jurisdiction over you by such courts with respect to any such Dispute.

If you are a consumer residing in the European Union, this clause and these terms in general do not affect any mandatory consumer rights you may have under your local law, and all Disputes arising in connection with the services and/or these terms shall be submitted to the exclusive jurisdiction of the court of Amsterdam, the Netherlands or, if you are a consumer, to a court in your domicile if in an EU Member State.

Class Action Waiver. You agree that any Dispute between you and Discord that for any reason is not subject to the “Agreement to Arbitrate” section below may only be pursued by you on an individual basis, and you may not bring a claim as a plaintiff or a class member in a class, collective, or representative action. To the extent a Dispute between you and Discord is subject to arbitration, the provisions set forth in the “Agreement to Arbitrate” apply, including those regarding class arbitration, private attorney general arbitration, arbitration involving joint or consolidated claims, and batching.

Time for Initiating a Claim. No action, regardless of form, arising out of or relating to a Dispute may be brought by either Party more than one ① year after the cause of action has accrued.

IF YOU'RE A U.S. OR CANADIAN RESIDENT YOU ALSO AGREE TO THE FOLLOWING "AGREEMENT TO ARBITRATE" WHICH CONTAINS MANDATORY ARBITRATION PROVISIONS. PLEASE READ THIS SECTION CAREFULLY – IT MAY SIGNIFICANTLY AFFECT YOUR LEGAL RIGHTS, INCLUDING YOUR RIGHT TO FILE A LAWSUIT IN COURT:

Agreement to Arbitrate.

The "Agreement to Arbitrate" includes all provisions following this heading, through and including the paragraph titled "Changes to this Agreement to Arbitrate."

Only after engaging in the Informal Dispute Resolution process set forth in these Terms, and only after those efforts fail to resolve the Dispute, then either Party may initiate binding arbitration as the sole means to resolve Disputes, subject to the terms of this Agreement to Arbitrate and the applicable arbitration rules.

You and Discord (collectively the "Parties") agree that this Agreement to Arbitrate is made pursuant to a transaction involving interstate commerce, and shall be governed by the Federal Arbitration Act ("FAA"), 9 U.S.C. §§ 1-16.

This Agreement to Arbitrate is intended to be interpreted broadly, and it applies to all Disputes between the Parties, including: ① claims that arose, were asserted, or involve facts occurring before the existence of this Agreement to Arbitrate or any prior agreement; ② claims that may arise after the termination of this Agreement to Arbitrate. This Agreement to Arbitrate supersedes any prior arbitration agreement between Discord and you.

Except as set forth in the paragraph below titled "Exceptions," the arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve: ① all Disputes; ② whether a claim is subject to arbitration; and ③ any dispute regarding the payment of administrative or arbitrator fees (including the timing of such payments and remedies for nonpayment). The arbitrator shall be empowered to grant whatever relief would be available in a court under law or in equity. The arbitrator has the right to impose sanctions in accordance with the arbitration provider rules and procedures for any frivolous claims or submissions the arbitrator determines have not been filed in good faith, as well as

for a Party's failure to comply with this Agreement to Arbitrate or the Informal Dispute Resolution process.

ARBITRATION MEANS THAT YOU WAIVE YOUR RIGHT TO A JURY TRIAL. In some instances, the costs of arbitration could exceed the costs of litigation and the right to discovery may be more limited in arbitration than in court. YOU HEREBY ACKNOWLEDGE AND AGREE THAT YOU AND DISCORD ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY TO THE MAXIMUM EXTENT PERMITTED BY LAW.

Arbitration Rules. For residents of the state of California, or Mass Arbitrations involving any residents of the state of California, the arbitration will be administered by ADR Services, Inc. ("ADR Services") (<https://www.adrservices.com/>). For residents of all states other than California, and Mass Arbitrations involving no residents of California, the arbitration will be administered by National Arbitration and Mediation ("NAM") and resolved before a single arbitrator. For residents of all states other than California if, and only if, NAM is not available to arbitrate, the alternative arbitrator shall be ADR Services, Inc. ("ADR Services") (<https://www.adrservices.com/>).

Except as modified by this Agreement to Arbitrate, NAM will administer any arbitration in accordance with the NAM "Comprehensive Dispute Resolution Rules and Procedures," "Fees For Disputes When One of the Parties is a Consumer," and the "Mass Filing Supplemental Dispute Resolution Rules and Procedures" in effect at the time any demand for arbitration is filed with NAM, excluding any rules or procedures permitting class or representative actions. The applicable NAM rules and procedures are available at www.namadr.com or by emailing National Arbitration and Mediation's Commercial Department at commercial@namadr.com.

Except as modified by this Agreement to Arbitrate, ADR Services will administer any arbitration in accordance with the ADR Services Arbitration Rules and General Fee Schedule in effect at the time any demand for arbitration is filed with ADR Services, including its rules regarding "Mass Arbitrations," and excluding any rules permitting class or representative actions. The applicable ADR Services rules and procedures are available at www.adrservices.com.

If the amount in controversy does not exceed \$10,000, and you do not seek injunctive or declaratory relief, then the arbitration will be conducted solely on the basis of documents

you and Discord submit to the arbitrator, unless the arbitrator determines that a hearing is necessary or applicable law requires otherwise. If the amount in controversy exceeds \$10,000 or seeks declaratory or injunctive relief, either Party may request (or the arbitrator may determine) to hold a hearing, which may be in-person, via videoconference, or via telephone conference. You and Discord agree that dispositive motions will be allowed in the arbitration.

Arbitration Costs. ADR Services and NAM set forth fees for their services, which are available from each provider. If Discord is the Party initiating an arbitration against you, Discord will pay all costs associated with the arbitration, including the entire filing fee. If you initiate an arbitration against Discord, costs will be determined in accordance with the Rules for the applicable arbitration provider, to the extent allowed by law. In all arbitrations, unless otherwise required by law or the arbitration provider's rules, you are responsible for all other additional arbitration costs incurred, including attorney's fees and expert witness costs.

The Parties agree that the arbitration provider has discretion to modify the amount or timing of any administrative or arbitration fees due under the applicable rules where it deems appropriate, provided that such modification does not increase the costs to you, and you waive any objection to such fee modification. The Parties also agree that a good-faith challenge by either Party to the fees imposed by an arbitration provider does not constitute a default, waiver, or breach of this Section while such challenge remains pending before the arbitration provider, the arbitrator, and/or a court of competent jurisdiction and all due dates for those fees shall be tolled during the pendency of such challenge.

Offer of Judgment. At least 14 days before the date set for an arbitration hearing, any Party may serve an offer in writing upon the other Party to allow judgment on specified terms. If the offer made by the offering Party is not accepted by the other Party, and the other Party fails to obtain a more favorable award, the other Party will not recover its post-offer costs and will pay the offering Party's costs from the time of the offer.

Arbitration Decision. The decision of the arbitrator will be in writing and binding on you and Discord, and judgment to enforce the decision may be entered by any court of competent jurisdiction.

Except as explicitly set forth in this Agreement to Arbitrate, the arbitrator, and not any federal, state or local court or agency, shall have exclusive authority to resolve all Disputes arising out of or relating to the interpretation, applicability, enforceability or formation of these terms, including any claim that all or any part of these terms are void or voidable, whether a claim is subject to arbitration, and any dispute regarding the payment of arbitration provider or arbitrator fees (including the timing of such payments and remedies for nonpayment). The arbitrator must follow these terms and can award the same damages and relief as a court. The arbitrator has the right to impose sanctions in accordance with the arbitration provider's rules and procedures for any frivolous claims, improper claims, or submissions the arbitrator determines have not been filed in good faith, as well as for a Party's failure to comply with this Agreement to Arbitrate or claims filed on behalf of a claimant who is not party to this agreement. No arbitration award or decision will have any preclusive effect as to issues or claims in any dispute with anyone who is not a named party to the arbitration.

Arbitration Location. Except as provided below in the "Mass Filings" section, if you are a resident of the United States and initiate arbitration, such arbitration will take place in the County where you reside, or if no arbitrator is available in that County, then at the closest arbitration location available in the state. If Discord initiates arbitration, and for residents in Canada, arbitration shall be initiated in the County of New Castle, Delaware, United States of America, unless you and Discord otherwise agree or unless the designated arbitrator determines, based on a written objection, that such venue would be unreasonably burdensome to any Party, in which case the arbitrator shall have the discretion to select another venue despite either Party's initial selection. For any arbitration conducted, the Parties agree to submit to the personal jurisdiction of any federal or state court in New Castle County, Delaware, in order to compel arbitration, to stay proceedings pending arbitration, or to confirm, modify, vacate or enter judgment on the award entered by the arbitrator; and in connection with any such proceeding, the Parties hereby waive any and all jurisdictional and venue defenses otherwise available. The Parties agree that arbitration may take place exclusively by video, where such arrangements are acceptable to the appointed arbitrator.

Mass Filings.

For arbitrations before NAM (or any substitute provider for NAM that is agreed upon by the Parties or appointed by a court, due to NAM's unavailability for any reason), to increase the efficiency of administration and resolution of arbitrations, in the event 100 or more similar arbitration demands (those asserting the same or substantially similar facts or claims, and seeking the same or substantially similar relief) presented by or with the assistance or coordination of the same law firm(s) or organization(s) are submitted to NAM against Discord within reasonably close temporal proximity ("Mass Filing"), the Parties agree (i) to administer the Mass Filing in batches of 100 demands per batch (to the extent there are fewer than 100 arbitration demands left over after the batching described above, a final batch will consist of the remaining demands) with only one batch filed, processed, and adjudicated at a time; (ii) to designate one arbitrator for each batch; (iii) to accept applicable fees, including any related fee reduction determined by NAM; (iv) that 10% of the anticipated total number of batches for the Mass Filing may proceed simultaneously as set forth in this batching provision and Agreement to Arbitrate, but no other demands for arbitration that are part of the Mass Filing may be filed, processed, or adjudicated until the completion of the "Mediation Period" described below, and after a prior batch of 100 is filed, processed, and adjudicated; (v) that fees associated with a demand for arbitration included in a Mass Filing, including fees owed by Discord and the claimants, shall only be due after your demand for arbitration is included in a set of batch proceedings and that batch is properly designated for filing, processing, and adjudication; and (vi) that the staged process of batched proceedings, with each set including 100 demands, shall continue until each demand (including your demand) is adjudicated or otherwise resolved. Arbitrator selection for each batch shall be conducted in accordance with the applicable NAM rules and procedures for such selection and shall be subject to any rights to strike an arbitrator provided under applicable state law if the rights granted by law exceed those provided for in the NAM rules. Notwithstanding the Section entitled "Arbitration Location," for arbitrations subject to this "Mass Filings" Section, the arbitrator will determine the location where the proceedings will be conducted. **You agree to cooperate in good faith with Discord, the arbitrator, and the arbitration provider to implement such a "batch approach" or other similar approach to provide for an efficient resolution of claims, including the payment of combined reduced fees, set by NAM in its discretion, for each batch of claims.** Any disagreement between the Parties as to whether this provision applies or as to the process or procedure for batching, or whether any demands are properly brought and may be included in a batch, shall be resolved by a procedural arbitrator appointed by NAM. This "Batch Arbitration" provision shall in no way be

interpreted as increasing the number of claims necessary to trigger the applicability of NAM's Mass Filing Supplemental Dispute Resolution Rules and Procedures or authorizing class arbitration of any kind. If your demand for arbitration is included in the Mass Filing, any statute of limitation applicable to your claims will remain tolled until your demand for arbitration is decided, withdrawn, or is settled.

For arbitrations before NAM, the results of the first completely adjudicated batch of demands will be given to a NAM mediator selected from a group of 5 mediators proposed by NAM, with Discord and the remaining claimants' counsel being able to strike one mediator each and then rank the remaining mediators and the highest collectively ranked mediator being selected. The selected mediator will try to facilitate a resolution of the remaining demands in the Mass Filing. After the results of the first batch are provided to the mediator, Discord, the remaining claimants and their counsel, and the mediator will have 90 days (the **"Mediation Period"**) to agree on a resolution or substantive methodology for resolving the outstanding demands. If the Parties are unable to resolve the outstanding demands during the Mediation Period and cannot agree on a methodology for resolving them through further arbitrations, either Discord or any remaining claimant may opt out of the arbitration process ("Mass Arbitration Opt Out") and have the demand(s) proceed in a court of competent jurisdiction. Notice of the Mass Arbitration Opt Out will be provided in writing within 60 days of the close of the Mediation Period. If neither Discord nor the remaining claimants decide to trigger the Mass Arbitration Opt Out and they cannot agree to a methodology for resolving the remaining demands through further arbitration, the arbitrations will continue with the batching process. Absent notice of a Mass Arbitration Opt Out, the arbitrations will proceed in the order determined by the sequential numbers assigned to demands in the Mass Filing.

Arbitration Proceedings at ADR Services. Except as set forth in this provision, the paragraphs in the "Mass Filings" provision shall not apply to arbitrations proceeding at ADR Services, which the Parties agree shall be governed by ADR Services Rules, including ADR Services' rules applicable to "Mass Filings". For Mass Filings at ADR Services, the Parties also agree that after 10% of the total number of cases that are subject to the Mass Filings have been resolved, Discord and the remaining claimants shall participate in a mediation, and at the conclusion of that process, if the Parties are unable to resolve the outstanding demands and cannot agree on a methodology for resolving them through

further arbitrations, either Discord or any remaining claimant may opt out of the arbitration process.

Opt-out. You can decline this **Agreement to Arbitrate**—and no other provision of these terms—by emailing an opt-out notice to arbitration-opt-out@discord.com within 30 days of September 29, 2025 or when you first register your Discord account, whichever is later; otherwise, you shall be bound to arbitrate Disputes in accordance with the terms of these paragraphs. If you opt out of the Agreement to Arbitrate, Discord also will not be bound by it and there shall be no arbitration agreement existing between you and Discord, whether under these or prior arbitration provisions. If you opt out of the Agreement to Arbitrate, you may exercise your right to a trial by jury or judge, as permitted by applicable law, but any prior existing agreement to arbitrate Disputes will not apply to claims not yet filed. If you opt out of the Agreement to Arbitrate, you will not be opting out of any other provision of these terms and you agree to be bound by all other provisions of these terms, which shall remain in effect as allowable by law.

Exceptions. You or Discord may still pursue claims, if they qualify, exclusively in a small claims court in the United States on an individual basis for Disputes and actions within the scope of such court's jurisdiction, regardless of what forum the filing Party initially chose, and you and Discord both consent to venue and personal jurisdiction in that court. The small claims court, and not any arbitrator or arbitration provider, shall have the exclusive authority to resolve Disputes regarding whether a Dispute is properly within the jurisdiction of a small claims court. Additionally, Disputes concerning patents, copyrights, moral rights, trademarks, and trade secrets and claims of piracy or unauthorized use of our services will not be subject to arbitration. Either Party may also seek a declaratory judgment or other equitable relief in a court of competent jurisdiction regarding whether a Party's claims are time-barred or may be brought in small claims court. Seeking such relief shall not waive a Party's right to arbitration under this agreement, and any filed arbitrations related to any action filed pursuant to this paragraph shall automatically be stayed (and any applicable statute of limitations tolled) pending the outcome of such action. Either Party may elect to have Disputes regarding whether a complaining Party has satisfied the Informal Dispute Resolution procedures set forth above resolved by a court as a precursor to arbitration; otherwise it shall be resolved in the arbitration.

Class Arbitration and Collective Relief Waiver. IF YOU'RE A U.S. RESIDENT, EXCEPT AS PROVIDED HEREIN, UNLESS DISCORD AGREES OTHERWISE IN A SEPARATE WRITING, YOU AND DISCORD AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN OUR INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE PROCEEDING AND THE ARBITRATOR MAY AWARD RELIEF ONLY IN FAVOR OF THE INDIVIDUAL PARTY SEEKING RELIEF AND ONLY TO THE EXTENT NECESSARY TO RESOLVE AN INDIVIDUAL PARTY'S CLAIM. Where Discord does consent to consolidation, consolidation may be allowed by agreement or where ordered by a Procedural or Threshold Arbitrator at ADR Services or NAM and you agree to accept such consolidation. In cases consolidated pursuant to this paragraph, the relief may cover the consolidated claims.

If the paragraph titled "Class Arbitration and Collective Relief Waiver," the paragraph titled "Mass Filings," or ADR Service's Mass Arbitration rules are found unenforceable, then the "Agreement to Arbitrate" section will be null and void. If any other provision is found to be invalid, unenforceable or illegal, or otherwise conflicts with the rules of the applicable arbitration provider, then the balance of this Agreement to Arbitrate shall remain in effect and shall be construed in accordance with its terms as if the invalid, unenforceable, illegal or conflicting provision were not contained herein.

This subsection does not prevent you or Discord from participating in a class-wide settlement of claims.

Changes to this Agreement to Arbitrate: Discord will provide 30 days' notice of the date of any material changes to this Agreement to Arbitrate. Changes will become effective on the 30th day and apply to all claims not yet filed, regardless of when they accrued. If you consent to these terms on or before the 30th day or continue to use the site after the 30th day, you agree that any unfiled claims of which Discord does not have actual notice under the Informal Dispute Resolution process are subject to the revised clause. If you reject any such changes by opting out of the Agreement to Arbitrate, you may exercise your right to a trial by jury or judge, as permitted by applicable law, but there shall be deemed to be no arbitration agreement between you and Discord and any prior existing agreement to arbitrate Disputes under a prior version of the Agreement to Arbitrate will not apply to claims not yet filed. If Discord changes this Agreement to Arbitrate after the date you first accepted this agreement (or accepted any subsequent changes to this agreement), you

agree that your continued use of the Discord product(s) or services 30 days after such change will be deemed acceptance of those changes. If you do not agree to such change, you may opt out of this Agreement to Arbitrate by emailing an opt-out notice to arbitration-opt-out@discord.com before the 30 day period expires.

MORE IMPORTANT STUFF

You have certain rights that, by law, can't be limited by these terms, and we in no way intend to restrict those rights in these terms. The term "including" as used in these terms means "including without limitation."

Entire agreement. These terms cover the entire agreement between you and Discord for your use of our services.

Additional terms. Where additional terms apply to our products or services, the additional terms will control with respect to your use of that product or service to the extent of any conflict with these terms. Additional information about our services is provided for users in Austria [here](#).

Bug reporting. We support the responsible reporting of security vulnerabilities. To report a security issue, please visit <https://discord.com/security>.

Export Control. You agree to comply with all applicable import, export, and re-export control laws and restrictions, including but not limited to those of the European Union and its member states, the U.S. Department of Commerce Export Administration Regulations ("EAR") and economic sanctions maintained by the U.S. Office of Foreign Assets Control ("OFAC"), and the International Traffic in Arms Regulations ("ITAR"), and will not use the services to cause a violation of such laws or regulations. You agree to not use our services to store or distribute content that is subject to export controls, unless you have obtained all required government export authorizations. Further, you represent and warrant that you are not on any government list of prohibited or restricted parties, or otherwise subject to equivalent restrictions, as specified in the laws and regulations listed above or in your country's laws. You may not download or use our services if you are located in a country or region subject to U.S. or E.U. government embargo (including Cuba, Iran, North Korea,

Syria, and the Crimea region) unless that use is authorized by the United States and other relevant authorities.

Waiver, severability, and assignment. If you fail to follow these terms and we don't immediately act, that doesn't mean we're giving up any of our legal rights (such as acting in the future). If any part of these terms ends up being invalid or unenforceable based on a decision by any court or competent authority, the rest of these terms will not be affected. You may not assign these terms to anyone else without our written consent. We may assign our rights to any of our affiliates or subsidiaries, or to any successor in interest of any business associated with our services.

Survival. Any part of these terms that by their nature should survive after termination of these terms will survive. As permitted under applicable law, this includes but may not be limited to the following:

- Our rights to [retain and display certain data](#);
- Any amounts owed will remain due;
- Any indemnification obligations (as applicable) such as those listed under the "Indemnity" section;
- Any disclaimer of warranties such as those under the "Services 'AS IS'" section;
- Any applicable limitation of liability such as those under the "Limitation of Liability" section;
- Any dispute resolution provisions, including the arbitration agreement, such as those under the "Settling disputes between you and Discord" section.

Updates to these terms. We may decide to update these terms: ① to reflect changes to our services or our business, ② for legal or regulatory reasons, ③ to prevent abuse on or of our services, or ④ to better protect or serve users of our services. If these changes materially affect your Discord use or your legal rights, we'll give you reasonable advance notice (unless the updates are urgent). If you continue to use our services after the changes have taken effect, it means that you agree to the changes. If you don't agree, you must stop using our services.

Apple App Store. If you download the Discord app from the Apple App Store or use our app on an iOS device, the below paragraph applies to you.

These terms grant a non-transferable license to use the Discord App on any Apple/Mac product that you might own or control and as permitted by Apple's policies. Apple has no obligation to furnish any maintenance and support services with respect to the Discord app. If the app fails to conform to any applicable warranty, you may notify Apple and Apple will refund the app purchase price to you (if applicable) and, to the maximum extent permitted by applicable law, Apple will have no other warranty obligation whatsoever with respect to the Discord app. Apple is not responsible for addressing any claims by you or any third party relating to the Discord app or your possession and use of it, including, but not limited to: (i) product liability claims; (ii) any claim that the Discord app fails to conform to any applicable legal or regulatory requirement; and (iii) claims arising under consumer protection or similar legislation. Apple is not responsible for the investigation, defense, settlement and discharge of any third-party claim that your possession and use of the Discord app infringe that third party's intellectual property rights. Apple and its subsidiaries are third-party beneficiaries of these terms, and upon acceptance of the terms, Apple will have the right (and will be deemed to have accepted the right) to enforce these terms against you as a third-party beneficiary thereof. You represent and warrant that (i) you are not located in a country that is subject to a U.S. Government embargo, or that has been designated by the U.S. Government as a terrorist-supporting country; and (ii) you are not listed on any U.S. Government list of prohibited or restricted parties. You must also comply with any applicable third-party terms of service when using the Discord app.

CONTACTING EACH OTHER

If you have any questions about, or wish to contact us in connection with, these terms, please contact us at privacy@discord.com unless otherwise stated in these terms. We may send you electronic communications related to our services. Where required, we'll get your consent before sending you direct marketing, and we'll make it easy for you to opt out.

For technical support or other assistance with respect to our services, you can submit a request [here](#).

Discord Inc. is located at 444 De Haro Street #200, San Francisco, CA 94107, USA. Discord Netherlands B.V. is located at Schiphol Boulevard 195, 1118 BG Schiphol, Netherlands.